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MEMORANDUM

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Stefanie Boster, City Attorney

Subject: Emergency ordinance amending section 10.08.010 of the city code governing the incorporation of state motor vehicle statutes into city code

Date: September 23, 2022

Purpose:

The proposed ordinance amends the city code provision governing the enforcement of the City of Cheyenne's traffic laws. Section 10.08.010 of the city code adopts by reference and incorporates numerous state statutes under Title 31 of the Wyoming Statutes, which governs motor vehicles. The incorporated provisions range from vehicle registration, insurance and driver's license requirements to safety requirements (e.g. seat belt usage and child safety restraints), to the prohibitions relating to operating a vehicle while under influence. By statute, any city or town that adopts state statute by reference may only adopt the statutes as they existed at the time of adoption. Section 10.08.010 currently does not reference a date certain or identify when the code provision was adopted.

The purpose of the proposed emergency ordinance would be to update the City of Cheyenne's incorporation (by reference) of these statutory provisions. Adopting the ordinance will avoid complications and confusion that may arise for the Cheyenne Police Department, the Cheyenne Prosecutor's Office, and the Municipal Court when determining what specific statutory provision governs under Section 10.08.010 city code.

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 10.08.010, STATE LAW ADOPTED, OF CHAPTER 10.08, STATE TRAFFIC LAWS ADOPTED, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO UPDATE THE INCORPORATION OF STATE MOTOR VEHICLE STATUTES."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 10.08.010, State law adopted, of Chapter 10.08, State Traffic Laws Adopted, of Title 10, Vehicles and Traffic, of the code of the City of Cheyenne, Wyoming, is hereby amended as set out in this ordinance.

10.08.010 - State law adopted.

The following sections of state law ~~as referenced~~ as in effect on October 1, 2022, but not including any exclusions enumerated are adopted by reference and incorporated as if fully set out in this title. A copy of each provision is on file in the office of city clerk.

- A. Wyo. Stat. Sections 31-5-101 through and including ~~31-5-1305~~ 31-5-1402 and Section 31-5-1601, with the exception of Section 31-5-1201, ~~The~~ of the Uniform Act Regulating Traffic on Highways.
- B. Wyo. Stat. Sections 31-7-101 through and including 31-7-138.
- C. Wyo. Stat. Sections 31-4-101 through and including 31-4-104, General Offenses and Penalties.
- D. Wyo. Stat. Sections 31-2-201 through and including 31-2-303, The Title and Registration Act.
- E. Wyo. Stat. Sections 31-6-102 through and including ~~31-6-106, The~~ 31-6-108 of the Implied Consent to Chemical Testing Act.
- F. Wyo. Stat. Sections 31-8-105, the prohibited acts and penalties of The Identification Card Act.
- ~~G. Wyo. Stat. Sections 31-5-1402, requires the use of seat belts in passenger vehicles.~~
- H.G. Wyo. Stat. Sections 31-7-401 through and including 31-7-404, ignition interlock licenses.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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